

SEE ALSO: Newsletter of February 14, 2024

[doc. web n. 9983210]

Provision of January 11, 2024

Register of provisions

n. 10 of January 11, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stazione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia, member, and Cons. Fabio

Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures of external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

Resolution of the Guarantor No. 98 of April 4, 2019,

published in G.U. No. 106 of May 8, 2019 and in

www.gpdp.it, doc. web n. 9107633 (hereinafter

"Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation in the records;

HAVING REGARD TO the observations made by the secretary

general pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, in www.gpdp.it, doc.

web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREAMBLE

1. The investigative activity.

In March 2023, a complaint was received by this Authority

alleging the dissemination on the social media Instagram, on the public

profile "DvoraAncona" of the Company David S.r.l.

(Centro Estetico Dvora), of a video in which the

complainant was filmed during an aesthetic medicine

procedure (Non-surgical Rhinoplasty) performed by Dr. Ancona,

legal representative of the Company David S.r.l. which operates

the Centro Estetico Dvora (hereinafter the "Company").

According to the complainant, such dissemination would have

occurred in the absence of a valid legal basis, as the

information provided and the consent form signed

by the data subject would not comply with the

regulations on the protection of personal data.

In support of the complaint, the complainant submitted

documentation related to the aforementioned video, which was subsequently removed at the request of the complainant from the aforementioned social media.

In relation to the said complaint, the Office initiated a preliminary investigation and requested information from the Company (note of April 13, 2023, prot. n. 61380), which, in a note dated May 12, 2023, in response to the aforementioned request for information, represented, in particular, that:

“on the occasion of - and prior to - the treatments to which the (...) [complainant] was subjected under the care of the undersigned, the (...) [complainant] signed and released a document in which he expressed his free and unconditional consent to the processing of his data”;

“the consent given by the (...) [complainant] contained the express warning and clear provision that the data and images acquired during the treatments would also be used for publication on social networks for dissemination/scientific/advertising purposes, as per Article 1 of the aforementioned information signed by the data subject”;

the aforementioned consent “is therefore specific and authorizes the publication of data and images on social networks, as well as being validly granted (also in written form)”;

“as per the video [sent by registered mail and acquired in the records of the procedure], during the filming, it was expressly represented [to the complainant] that, in accordance with the consent given, the treatment would be filmed live and sent in a so-called live story on Instagram, as evidenced by the fact that during the treatment, two video recording lamps were installed and clearly visible, that the recordings were made manually via mobile phones in front of witnesses and that the undersigned openly and explicitly greeted the Instagram users connected in live. The [complainant], fully aware of what was happening and of the treatment being carried out on his personal data at that moment, expressed (tacit) consent, or in any case, raised no objections”;
by his behavior, the data subject at least induced the undersigned to believe that he had consented “to the particular type of processing of his personal data”;

“the treatment to which the [complainant] was subjected was carried out in 2 sessions lasting over half an hour each; the video recordings of the published video [...], are limited in total to 34 seconds, meaning that only the adequate data that was actually needed to achieve the declared purposes of the treatment (i.e. publication of an article (which in social media language is referred to as "Post") on social networks, regarding the effects of the treatment) were processed, and only to those strictly necessary”;

during the filming “the subject was lying down with his beard and hair pulled back [...] and that a good part

of the nonetheless scarce visible portion of the face remained covered by the hands and equipment of the applicant [...] it is therefore believed that the conditions of filming are such as to guarantee the non-identifiability of the subject involved”;

“at the simple request of the interested party, the video was promptly removed from the [only] social network [Instagram, on which it had been published]. [...] the personal data were not disseminated through other means” and the video “is in no way accessible, not even upon specific search”;

“the only device on which the video was stored was that of the applicant, with which it was created (in addition to a backup copy, exclusively available to the applicant)”;

that being said, given the valid consent freely expressed by the interested party and that “social networks constitute, today, the primary tool for disseminating information, including scientific information, this is so true that according to a report from the European Commission, the so-called Eurobarometer 2021, in European countries, 29% of the population stays informed about science and technology through new digital media including social networks. In this context, social media present themselves to scientists and academics as a means to develop both their professional profile and their public communication activities, with the promise of amplifying the content of their research and extending the pool of users involved in conversations about science and technology [...] it is believed that the applicant acted in good faith believing that he had received valid and explicit consent from the interested party for the processing of the data and for their publication”;

in order to take into account the observations expressed by the Authority, the Company also represented that it has undertaken a verification process of the

compliance of the treatments carried out with the regulations on the protection of personal data by implementing specific actions, in particular, it declared that it has:

- organized specific training courses attended by employees and collaborators involved in the processing of data and has initiated a review process of all internal procedures, the completion of which will be anticipated compared to the date previously indicated at the end of the current year;
- appointed, starting from May 1, 2023, an “external DPO expert in the field”;
- even before receiving the communication regarding the initiation of this procedure, modified the “documents with which consent for the processing of

data is requested from patients, adopting specific provisions on the use of health data for presentations, publications, or scientific disseminations, including on social media”;

- provided for further verification by a “third specialized company, independent of the authors of such new models [...] (second opinion) of the compliance of such documentation with applicable regulations, also conforming to the indications that will be provided in the field considering the adoption of the code of conduct for the use of data for educational purposes and scientific publications [...]”;
- planned, with the assistance of the appointed DPO, the further “reworking of the forms to express informed consent and consent for data processing, with specific indications regarding the publication of photos and videos on social networks (with express indication of Instagram and others)”;
- currently evaluating the “adoption of specific verification and modification tools and/or that make the subjects undergoing the treatments automatically non-identifiable (anonymization/ pseudonymization) subject to, in any case, verification

that all required authorizations have been provided by the interested parties as per the sector regulations”.

In relation to what emerged from the documentation in the records, the Office notified the aforementioned Company, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, inviting the aforementioned data controller to submit to the Authority defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981) (note of June 16, 2023, prot. no. 94136).

In that act, the Office noted that the Company has processed personal data in a manner not compliant with the principles of “lawfulness, fairness, and transparency” in violation of Articles 5, paragraph 1, letter a), 12 and 13 of the Regulation; in the absence of an appropriate legal basis, in violation of Articles 2-septies, paragraph 8 of the Code, 6 and 9 of the Regulation.

By note dated July 14, 2023, the Company submitted its defensive memoranda, not requesting to be heard in a hearing.

In particular, the Company, fully referring to the content of the defensive writing produced in response to the aforementioned request for information from the Office, represented that: “what was done to the complainant was a mere aesthetic application, in particular, the treatment

of enlarged pores on the nose; it has not been clarified what information regarding the health status of the complainant would have been disseminated. In other words, in this proceeding, a logical presumption is taken for granted that is not, in fact, at all taken for granted: i.e., that health data were processed. However, it appears that this is not the case, given that the potential presence of enlarged pores

(which concerns 100% of the population global) reveals nothing about the health of the subject";

"the processing of the data of the [complainant] took place on the basis of a written and explicit consent that the complainant, entirely in good faith, believed to be perfectly valid, mentioning said consent also on social networks and therefore the platform on which the recordings were (for a very short time) published";

"has taken good note of the observations of Your esteemed Authority, to which it is already conforming" by producing specific documentation in this regard, including the prospectus of the elements referred to in Article 83, paragraph 2 of the Regulation, acquired in the records of the proceeding.

With specific reference to this last document, the Company has represented that:

"The alleged violation involved a single subject: the complainant; the complainant, David S.r.l., acted believing it had written and verbal consent; the time during which the complainant is recognizable is limited from second 0:24 to second 0:25, the face was always covered by the hands of Dr. Ancona in order to perform the service; the duration of the video on social media was limited to 45 days with very few views; from the request for deletion by the complainant to the actual deletion only a few minutes elapsed; the subject was not tagged (reference of the image to his specific person and/or to his social account)";

"the complainant, David S.r.l., acted in the full belief that the subject was aware and consenting to the recording for dissemination on Instagram of the processing. Both to the complainant and to the bystanders (1 medical assistant present and 2 people who prepared the video), this seemed clear and they believed, entirely in good faith, that the subject was pleased with this";

"upon simple request and without raising any objections, even on the assumption of having acted correctly, the complainant immediately proceeded to the definitive deletion of the video from Instagram";

"the complainant had already provided specific training to its staff regarding the correct processing of personal data; furthermore, following the event, the complainant has reformulated all consent forms and provided new training to the staff";

"Full cooperation. In any case, there was no need for it, as the video has been removed and is not in any way retrievable";

"processed data do not reveal any health status. All that can be inferred is that the subject underwent an aesthetic treatment for enlarged pores on the nose";

[...] it was a single violation; the cost of the intervention was 350.00 euros (three hundred fifty); David S.r.l. is a small aesthetic medicine entity, nevertheless it is implementing quality certification systems, including the correct management of data."

2. Outcome of the investigative activity.

Taking note of what has been represented by the Company in the documentation on file and in the defense memoranda, it is observed that:

pursuant to the Regulation, "personal data" means "any information relating to an identified or identifiable natural person ('data subject')." Furthermore, "a natural person is considered identifiable who can be identified, directly or indirectly, with particular reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more specific elements of their physical, physiological, genetic, mental, economic, cultural, or social identity" (Article 4, No. 1 of the Regulation) and "health data" are considered personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information related to their health status (Article 4, paragraph 1, No. 15, of the Regulation). Recital No. 35 of the Regulation

further specifies that health data "includes information about the natural person collected during their registration to receive health care services";

pursuant to the Regulation, personal data must be "processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')" and must be collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes ('purpose limitation principle') (Articles 5, paragraph 1, letters a) and b) of the Regulation);

with specific reference to the special categories of data, including health data, Article 9 of the Regulation establishes a general prohibition on the processing of such data unless one of the specific exemptions in paragraph 2 applies;

in this regard, the Authority has repeatedly emphasized that with the full application of the Regulation, unlike in the past, the healthcare professional, subject to professional secrecy, no longer needs to obtain the patient's consent for treatments necessary for the healthcare service requested by the data subject, regardless of whether they operate as a freelancer (in a medical practice) or within a public or private healthcare facility (see the provision "Clarifications on the application of the rules for the processing of health data in the healthcare sector" of March 7, 2019, web doc No. 9091942);

in cases where the processing is not strictly necessary for care purposes and the legal basis is represented by the consent of the data subject, taking into account the nature of such data, particularly sensitive from the perspective of fundamental rights and freedoms, such consent must be given through a positive act by which the data subject expresses a free, specific, informed, and unequivocal will regarding the processing of personal data concerning them (Article 9, paragraph 2 letter a) of the Regulation and paragraph 4 of the Guidelines 5/2020 on consent under Regulation (EU) 2016/679, adopted by the European Data Protection Board on May 4, 2020). Such consent, considering the nature of such data, particularly sensitive from the perspective of fundamental rights and freedoms, indeed cannot be implicit but must be explicit (Article 9, paragraph 2 letter a) of the Regulation and paragraph 4 of the Guidelines 5/2020 on consent under Regulation (EU) 2016/679, adopted by the European Data Protection Board on May 4, 2020);

it is also noted that the Regulation grants Member States the power to introduce additional conditions including limitations regarding the processing of genetic, biometric, or health-related data (Article 9, paragraph 4 of the Regulation). The national legislator has implemented these provisions, as relevant here, through Article 2-septies of the Code, which provides that information about health status cannot be disseminated (see also Article 166, paragraph 2, of the Code) and can only be communicated to the data subject and can be communicated to third parties only on the basis of an appropriate legal basis or at the request of the data subject itself, following a written delegation from the latter (Article 9 of the Regulation);

the Authority, since 2014, in accordance with Article 22, paragraph 8, of the then-current Code, has stated that "the publication of any information from which the state of illness or the existence of pathologies of the data subjects can be inferred is prohibited, including any reference to conditions of disability, physical and/or mental handicap. For this purpose, from the drafting phase of the acts and documents subject to publication, in compliance with the principle of adequate motivation, personal data that are "excessive," "not relevant," "not necessary" (and, even less, "prohibited") should not be included. Otherwise, it is necessary to ensure the relevant obscuring" (see Guidelines on the processing of personal data, including in acts and administrative documents, carried out for advertising and transparency purposes on the web by public entities and other obligated entities, Part II, paragraph 1, of May 15, 2014, web doc. no. 3488002);

the principles of transparency and fairness imply that the data subject is informed of the existence of the processing and its purposes and that personal data are processed by providing the data subjects in advance with the information referred to in Article 13 of the Regulation (recital no. 60 and Article 5, paragraph 1 letter a) of the Regulation). The information must then be provided in a concise, transparent, intelligible, and easily accessible form, using simple and clear language (Recital 58 and Article 12 of the Regulation).

in the case of collecting personal data from the data subject, the data controller must provide them, at the moment when the personal data are obtained, with all the information indicated in Article 13 of the Regulation.

it is further noted that the regulation on the protection of personal data does not apply to anonymous data. In this regard, it is also worth clarifying that "(...) information that does not relate to an identified or identifiable natural person or to personal data rendered sufficiently anonymous to prevent or no longer allow the identification of the data subject" is considered anonymous, including for processing carried out for statistical or research purposes (see recital no. 26 of the Regulation). The risk of re-identification of the data subject must, however, be carefully assessed taking into account "all means, [...], which the data controller or a third party can reasonably use to identify that natural person directly or indirectly. To ascertain the reasonable likelihood of using the means to identify the natural person, all objective factors should be considered, including the costs and time required for identification, taking into account both the technologies available at the time of processing and technological developments" (see recital no. 26 of the Regulation and WP29 Opinion 05/2014 on Anonymisation techniques, adopted on April 10, 2014). An anonymization process cannot be considered truly such if it is not suitable to prevent anyone using such data, in combination with "reasonably available" means, from being able to:

1. isolate a person in a group (single-out);
2. link an anonymized data to data referring to a person present in a distinct dataset (linkability);
3. deduce new information referring to a person from an anonymized data (inference):

with specific reference to the publication of clinical cases, the Code of Medical Ethics approved by the National Federation of Orders of Surgeons and Dentists in 2014 (as amended in 2016 and 2017) provides that "the physician ensures the non-identifiability of the subjects involved in scientific publications or disclosures of data and clinical studies" (Article 11 - Confidentiality of personal data);

in this regard, the Code of Conduct for the use of health data for educational and scientific publication purposes approved by the decision of the Guarantor no. 7 of January 14, 2021 (web doc. no. 9535354), expressly provides that in the event

in which it is not possible to proceed with the anonymization of the data, the data controller must obtain specific consent, and once obtained, the data must still be subjected to pseudonymization. From the documentation produced in the records, it is noted that: the Company, based on the aforementioned provisions, in making a 34-second video in which the face of the complainant is recognizable during an aesthetic medicine procedure aimed at removing physiological imperfections of the individual, defined in the same video as a "non-surgical rhinoplasty," has processed health data of the individual concerned. The Authority has clarified in numerous decisions that the "sensitive" nature (now "particular" under Article 9 of the Regulation) of information must also be assessed in relation to the context of reference; therefore, a piece of data can be considered related to the health status of the individual even if there is no explicit reference to any pathology suffered, but only to information correlated to it (see, among others: decision of April 11, 2019, web doc no. 9113830; general decision of November 9, 2005, web doc no. 1191411; decision of February 27, 2002, web doc no. 1063639; point 2, "Guidelines on the processing of personal data, including those contained in administrative acts and documents, carried out for advertising and transparency purposes on the web by public entities and other obligated entities," web doc no. 3134436); it has disseminated information about the health status of the complainant in a manner not compliant with the regulations on personal data protection, which imposes an explicit prohibition (Article 2-septies of the Code) through the publication of a video on the social media platform Instagram, on the public profile "DvoraAncona," in which the complainant is portrayed during an aesthetic medicine procedure; according to what has already been noted by the Authority in the cited Code of Conduct, the stated and alleged scientific-dissemination purposes pursued by the Company through the publication of the aforementioned video should have, if applicable, been pursued through the processing of anonymized data in light of Opinion 05/2014 of WP29; if it had not been possible to proceed with the anonymization of the data (e.g., due to the peculiarities of the clinical case represented), specific and informed consent from the individual

concerned should have been obtained, and once obtained, the data should still have been subjected to pseudonymization; in any case, the consent obtained from the complainant during the aesthetic medicine treatments to which the individual underwent cannot be considered valid, as it was not explicit, specific, and not informed regarding the purpose in question (see the cited Code of Conduct for the use of health data for educational and scientific publication purposes). In fact, the information provided by the data controller, in the section titled "Purpose of the processing," contains a generic reference "to the publication of articles on social media and magazines," without specifying that health data of the individual would be disseminated on the public profile "DvoraAncona" of Instagram by the Company, without any pseudonymization of the same; nor can it be considered - from the video acquired in the records of the proceedings - that the complainant has tacitly consented to the processing of their data - including health data - for the creation of a video to be published on the aforementioned social profile of the Company. Indeed, the so-called "tacit" consent of the individual cannot be considered validly granted, as the Regulation, in identifying the exceptions to the prohibition on processing particular categories of data, including health data, provides that they can be processed, among other things, based on the explicit consent of the individual concerned (Article 9, paragraph 2, letter a)). Therefore, the fact that the healthcare service to which the individual was subjected was recorded not without the individual's knowledge does not equate to having obtained from them informed, specific, and explicit consent regarding the ways in which the data subject to the recording would be processed and, in this case, even disseminated on a social channel; the Company provided the complainant with information that was inadequate and lacking the essential elements referred to in Article 13 of the Regulation: incorrectly indicating Dr. Ancona as the data controller and not the company David S.r.l., of which the latter is the legal representative (Article 13, paragraph 1, letter a) of the Regulation and Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR Version 2.0, adopted on July 7, 2021, point 2.1.1); indicating the purposes of the processing in a contradictory manner, as - preliminarily - it is represented to the data subjects that "all personal data and images collected during the interventions of the Dvora medical center will be used for the organization and management of events and conferences for the advertising of medical instruments and for the publication of articles on social media, magazines" and - subsequently - that "all treatments carried out by the Dvora medical center as data controller are aimed solely at the proper conduct of the activities necessary for the provision of aesthetic medicine treatments or for other medical services requested by you"; not indicating all the purposes of the processing, particularly the one in dispute, which consists of the dissemination of the aforementioned video on the social media platform Instagram, which in any case is not permitted except within the limits highlighted above (Article 13, paragraph 1, letter c) of the Regulation); not indicating the different legal bases of the of administrative sanctions as per the provisions of art. 83 of the Regulation.

In light of the above, it is deemed necessary to adopt an injunction order for the application of the administrative pecuniary sanction and accessory penalties, as per art. 58, par. 2, lett. i), and art. 83 of the Regulation; art. 166, comma 7, of the Code.

The violation of art. 5, par. 1, lett. a), 6, 9, 12, and 13 of the Regulation and 2-septies, comma 8, of the Code, caused by the conduct carried out by the Company David S.r.l., is subject to the application of administrative sanctions.

of the administrative pecuniary sanction pursuant to art. 83, paragraph 5, of the Regulation and art. 166, paragraph 2 of the Code.

It should be noted that the Authority, pursuant to arts. 58, paragraph 2, letter i), and 83 of the Regulation, as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] [corrective] measures provided for in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Authority] adopts the injunction order,

which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to article 166, paragraph 7, of the Code" (art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in art. 83, paragraph 1, of the Regulation, in light of the elements provided in art. 85, paragraph 2, of the Regulation in relation to which it is observed that:

the processing carried out involved the dissemination for 45 days on the social network Instagram of a 34-second video recording of the face of the data subject during an aesthetic medicine procedure, information suitable to reveal the health status of a single data subject (art. 83, paragraph 2, letters a) and g), of the Regulation);

from the perspective concerning the subjective element, there is no evidence of intentional behavior on the part of the data controller as the violation occurred in good faith (art. 83, paragraph 2, letter b) of the Regulation); at the request of the complainant, the data controller took proactive steps to remedy the violation, having promptly removed the video from its Instagram profile (art. 83, paragraph 2, letter c) of the Regulation);

there are no previous relevant violations committed by the data controller nor have any previous measures been ordered pursuant to art. 58 of the Regulation (art. 83, paragraph 2, letter e) of the Regulation);

the Company has fully cooperated with the Authority during the investigation and the present proceeding by implementing some measures aimed at bringing the processing of personal data into compliance with the current regulatory framework on personal data protection, although the non-compliance issues highlighted above persist (paragraph 4). In particular, the Company:

has organized specific training courses attended by employees and collaborators involved in the processing of data and initiated a review process of all internal procedures, the completion of which will be anticipated compared to the date previously indicated at the end of the current year;

has appointed, effective from May 1, 2023, an "external DPO with expertise in the field";

even before receiving the communication regarding the initiation of the sanctioning procedure from the Office, has modified the "documents through which consent for data processing is requested from patients, adopting specific provisions on the use of health data for presentations, publications, or scientific disclosures, including on social media" (art. 83, paragraph

2, letter f) of the Regulation);

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction provided for by art. 83, paragraph 5, letters a) and b), of the Regulation, in the amount of eight thousand euros (€8,000) for the violation of arts. 5, paragraph 1, letter a), 6, 9, 12, 13 of the Regulation, 2 septies, paragraph 8 of the Code, as an administrative pecuniary sanction deemed, pursuant to art. 83, paragraph 1, of the Regulation, effective, proportional, and deterrent.

It is also considered that the accessory sanction of publication on the Authority's website of this provision, as provided for by art. 166, paragraph 7, of the Code and by art. 16 of the Regulation of the Authority no. 1/2019, should be applied, also in consideration of the type of personal data subject to unlawful processing.

Finally, it is noted that the conditions of art. 17 of the Regulation no. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares the unlawfulness of the processing of personal data carried out by the Company David S.r.l. for the violation of arts. 5, paragraph 1, letter a), 6, 9, 12, 13 of the Regulation, 2 septies, paragraph 8 of the Code as stated in the reasoning.

ORDERS

pursuant to arts. 58, paragraph 2, letter i), and 83 of the Regulation, as well as art. 166 of the Code, the Company David S.r.l., based in Milan, Via Paolo Lomazzo 19, Tax Code 06835980969, represented by the legal representative pro tempore, to pay the sum of eight thousand euros (€8,000) as an administrative pecuniary sanction for the violations indicated in this provision; it is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of eight thousand euros (€8,000) according to the methods indicated in the annex, within 30 days from the notification of this measure, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

pursuant to Article 58, paragraph 2, letter d), of the Regulation, to align the processing with the provisions of the Regulation, adopting within ninety days from the notification of this measure, the corrective measure of reworking the document titled "Information on the processing of personal data pursuant to Articles 13 and 14 of EU Regulation 2016/679 for the processing of personal data related to audio, video, and photographic recordings":

1. eliminating the irrelevant reference to Article 14 of the Regulation, which applies only in cases where

personal data is not obtained from the data subject;

2. eliminating the reference to the contact details of the Data Controller and inserting those of the Data Protection Officer that the Company has declared to have appointed since last May. This is because Article 13, paragraph 1, letter b) refers to the contact details of the Data Protection Officer, as per Articles 37 et seq. of the Regulation, which is a figure quite different from the aforementioned Data Controller, governed by Article 28 of the Regulation (see also Article 4, point 8) of the Regulation);

3. clarifying in the section titled "Purpose of Processing" that the personal data subject to dissemination will not include health data, considering the prohibition on the dissemination of such data (Article 2-septies, paragraph 8 of the Code) and integrating this section with the indication of the legal basis for processing (Article 13, paragraph 1, letter c) of the Regulation);

4. modifying the section "Obligation of Consent" as it is misleading and contradictory, considering that on one hand it is stated that "the provision of your data is optional, if not strictly related to the functioning of the activity or the proposed service" and on the other that "the lack of consent will not allow the use of images and/or audiovisual recordings of the data subject for the aforementioned purposes";

5. correcting the typographical error in the section "Communications to Third Parties and Publication/Dissemination of Data," where it is written that: "Within the limits pertinent to the purposes of processing indicated, personal data, images, and audiovisual recordings may be (will not be) subject to communication, publication, and dissemination [...]";

6. integrating the section "Rights of the Data Subjects" with the right of access to data and the right to withdraw consent given by the data subject, which can be exercised at any time.

Failure to comply with an order issued pursuant to Article 58, paragraph 2, of the Regulation is punishable by the administrative sanction referred to in Article 83, paragraph 6, of the Regulation;

pursuant to Article 58, paragraph 1, letter a), of the Regulation and Article 157 of the Code, to communicate what initiatives have been undertaken in order to implement what is prescribed in the aforementioned paragraph 6, and to provide feedback, adequately documented, within and no later than 20 days from the expiration of the above-mentioned deadline. Failure to respond to a request made pursuant to Article 157 of the Code is punishable by the administrative sanction, pursuant to the combined provisions of Articles 83, paragraph 5, of the Regulation and 166 of the Code.

ORDERS

pursuant to Article 166, paragraph 7, of the Code, the full publication of this measure on the website of the Authority and the annotation of this measure in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this measure it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the measure itself or within sixty days if the appellant resides abroad.

Rome, January 11, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei